

10. **Solicitor of the cestui que trust.** — It has been pronounced too dangerous to allow the *cestui que trust's* solicitor, without a *special* authority, to bind his employer by such a contract with the trustee (*f*).

11. **Creditors.** — Where the *cestuis que trust* are creditors, it has been held that the trustee cannot purchase with the sanction of the major part of them, but that the liberty must be given by the unanimous voice of the whole [\*489] body (*g*). However, the Court has sanctioned \* purchases of a bankrupt's estate by *assignees*, where the assent of a general meeting of creditors had been obtained (*a*); and the Court would, no doubt, in executing the trust of a creditors' deed, allow a trustee to purchase, if it were really for the benefit of the creditors.

12. **Court will not authorise the trustee to bid.** — The Court has no jurisdiction on behalf of the *cestuis que trust* who are *sui juris* to authorise a trustee to bid, for that is a question the *cestuis que trust* are entitled to decide for themselves (*b*). So far as the Court is concerned, it will not give a trustee leave to bid, for it is his duty to communicate all the information he can for the benefit of the sale, and this he might not be disposed to do if he were allowed to purchase himself (*c*). But if a sale by auction under the direction of the Court has been tried in vain, the trustee is at liberty to make proposals on his own behalf, and the Court may be induced to accept the offer (*d*).

[13. **Effect of leave to bid.** — Where, in an administration action, leave was given to the solicitor for the defendant (the executor) to bid at the sale, which was to be conducted by the plaintiffs' solicitors, independently of the executor, it was held that the effect of the leave was to put an end to the fiduciary relation in which he formerly stood, and to

(*f*) *Downes v. Grazebrook*, 3 Mer. 209, *per* Lord Eldon.

(*g*) Sir G. Colebrooke's case, cited *Ex parte Hughes*, 6 Ves. 622; *Ex parte Lacey*, Id. 628; the cases cited Id. 630, note (*b*). *Whelpdale v. Cookson* (cited *Campbell v. Walker*, 5 Ves.

682), was doubted by Lord Eldon, 6 Ves. 628.

(*a*) *Anon. case*, 2 Russ. 350; *Ex parte Bage*, 4 Mad. 459.

(*b*) See *Ex parte James*, 8 Ves. 352.

(*c*) *Tennant v. Trenchard*, 4 L. R. Ch. App. 545.

(*d*) S. C. 4 L. R. Ch. App. 547.